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March 14, 2025

Submitted Electronically at [REDACTED]

Subject: Request for Information (RFI) on the Development of an
Artificial Intelligence (AI) Action Plan

Mr. Faisal D'Souza:

I am pleased to submit these comments on behalf of the Association for Clinical Oncology (ASCO) in response to the RFI on the Development of an Artificial Intelligence (AI) Action Plan. ASCO is an organization representing more than 50,000 physicians and other health care professionals specializing in cancer treatment, diagnosis, and prevention. We are also dedicated to conducting research that leads to improved patient outcomes, and we are committed to ensuring that evidence-based practices for the prevention, diagnosis, and treatment of cancer are available to all Americans.

ASCO appreciates the Administration's continued commitment to enhancing American leadership in AI. We are committed to working with you to help develop and finalize an AI Action Plan that ensures innovation in health care is not hampered by unnecessarily burdensome requirements.

To that end, ASCO recommends that the Administration actively prioritize the following:

- **Develop a Flexible Regulatory Framework.** The increasing patchwork of state laws and anticipated legal challenges, compounded by the rapid and unpredictable pace of AI technological advancement, may interfere with the goals of a federal AI action plan. We urge the administration to work collaboratively with Congress to advance legislation that supports a flexible regulatory approach that prioritizes the health and well-being of patients.
- **Invest in and Support Transformative AI Initiatives.** ASCO recommends continued investment and support of projects relating to transformative AI initiatives. Programs administered under the Advanced

Research Projects Agency for Health (ARPA-H) address critical challenges in AI development and could serve as a beacon for AI innovations.

- **Drive Interoperability and Data Sharing.** A key barrier to realizing the promise of AI is the need for massive volumes of high-quality data. The limited ability to curate large, complex data sets could lead to poor performance of AI models. To fully recognize the potential of AI in health care, we need to address the insufficiencies of current interoperability capabilities in the health care system by facilitating communication across the entire health information technology (HIT) continuum.
- **Strengthen Cybersecurity and Data Privacy.** With large data sets and increased data sharing comes the risk of security breaches and cyber-attacks. Effective cybersecurity measures are essential to safeguarding sensitive patient data. Policies will require flexibility that does not cause undue administrative and financial burden on already overwhelmed and taxed oncology practices.
- **Promote Trustworthy and Responsible AI.** While we can develop exciting new technologies in health care, widespread adoption – essential for realizing AI’s full potential – will require trust and confidence in their use. We urge the administration to address resource restraints within the Food and Drug Administration (FDA) and to support robust post-marketing surveillance.

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Develop a Flexible Regulatory Framework

As we enter a new era of discovery in cancer care and research fueled and supported by AI, ASCO understands the potential for these new technologies to provide benefits but is also aware of the need for thoughtful deployment and monitoring. ASCO is concerned that, given the absence of a federal regulatory framework and the accelerating evolution of AI capabilities, a patchwork of state laws and legal challenges will emerge that may interfere with the implementation of a federal AI action plan, limiting its competitive intent.

ASCO urges the Administration to develop an action plan that supports flexible regulatory mechanisms to address an evolving health care infrastructure that will have to confront AI’s inherent risks. A nimble approach can enable a more efficient, accessible, and affordable health care system that prioritizes and protects the health and well-being of patients with cancer. Alignment around sound federal AI policy should enable clinicians and the government to work

collaboratively towards a common goal of rapid and appropriate deployment of innovative technologies that can deliver high-quality care and improve patient outcomes.

Invest in and Support Transformative AI Initiatives

ASCO recommends continued investment and support of entities actively engaged in transformative AI initiatives. The Advanced Research Projects Agency for Health (ARPA-H) was created to significantly enhance the health system and research ecosystem and could serve as a beacon for AI innovations. Since its inception, ASCO has supported the goals of ARPA-H. We anticipate the high-risk, high-reward projects will have a transformative impact that will benefit cancer patients nationwide.

ARPA-H's AI-focused efforts include the Performance and Reliability Evaluation for Continuous Modifications and Useability of Artificial Intelligence (PRECISE-AI) program.¹ This initiative directly addresses a critical challenge in AI development: the potential for AI model degradation over time (AI drift). Inaccurate AI models in health care can negatively impact patient health outcomes, especially given the potential for AI drift. Through continuous monitoring of clinical AI models, if AI drift has been identified, PRECISE-AI could provide capabilities to correct for performance degradation without the need for human oversight, thereby reducing the burden on individual operators. Importantly, this technology will also communicate clear and actionable information about the sources of degradation and allow users to better interpret model uncertainty and thus help them use their software more effectively.

Other ARPA-H initiatives that leverage AI include researching the discovery and creation of new classes of antibiotics to combat antibiotic resistance, developing novel methods to protect health care facilities from ransomware attacks, strengthening electronic health infrastructure and address vulnerabilities in data security, and the ability to rapidly pinpoint and validate existing medications to treat diseases that currently have no therapies.² By tackling these issues head on, ARPA-H is paving the way for more reliable and effective AI applications in health care.

ARPA-H's focus on end product-driven research and development makes them uniquely positioned to drive innovation in health AI. We urge the new Administration to commit to consistent and sustained support of ARPA-H's mission and to invest in similar health AI initiatives.

¹ <https://arpa-h.gov/explore-funding/programs/precise-ai>

² <https://arpa-h.gov/explore-funding/programs>

Drive Interoperability and Data Sharing

To fully recognize the potential of AI in health care, we need to address a major impediment: the current insufficiencies of current interoperability capabilities. To effectively leverage AI, massive volumes of high-quality data are needed to support AI technologies' accuracy and reliability. Limited and/or poor-quality data sets can lead to poor performance of AI models and result in research conclusions that perpetuate inaccuracy and produce negative health outcomes.¹² Although adoption of electronic health records has improved data collection, insufficient interoperability and gaps in structured health data persist, challenging the use of accurate and reliable AI.

Policies should facilitate the adoption of standards to promote and drive electronic data exchange. We must allow the sharing of data across the care continuum- among providers at small and large institutions, community practices, academic settings, imaging centers, laboratories, pharmacies, payers, researchers, and patients. Information sharing is the key to truly utilizing AI's potential to derive new clinical insights and improve clinical outcomes, coordination of care, and the efficiency of care delivery. More incentives are needed to create the environment for this to occur.

The new administration should focus on addressing the current barriers to maximizing the value of health AI by providing more incentives for providers and researchers to facilitate communication and promote interoperability of data sets across the HIT continuum.

Strengthen Cybersecurity and Data Privacy

With large data sets and increased data sharing comes the risk of security breaches and cyberattacks. Effective cybersecurity measures are essential to safeguarding sensitive patient data, ensuring the continuity of critical health care services, especially cancer care, and preventing operational and financial disruptions. As most health care providers and their patients increasingly rely on digital transactions for prior authorizations, prescription transmissions, clinical decision support, access to patient records, and online payments and revenue cycle operations, it is imperative that effective and streamlined cybersecurity measures and standards are implemented.

For these reasons, oncology providers are extremely motivated to work within a system secured from outside cyberattacks and threats and do their best to comply with HIPAA security rules. Despite our support for a robust cybersecurity environment, ASCO believes we must ensure that policies do not cause undue administrative and financial burden on already overwhelmed oncology practices. ASCO believes that cybersecurity and data privacy policies will

require flexibility that is necessary for practices to comply while creating a safe and robust security environment for stakeholders.

The need to preserve patient privacy will be an important component in ensuring cybersecurity. There is a greater, emerging need to support research on privacy enhancing technologies such as federated learning and differential privacy. More incentives are needed to actively explore techniques to help understand AI algorithms (to its extent possible). Ultimately, policies must address fundamental questions regarding data stewardship, data sharing, and security while safeguarding patient privacy and autonomy.

Promote Trustworthy and Responsible AI

While we can develop exciting new technologies in health care, widespread adoption – essential for realizing AI’s full potential – will require trust and confidence in their use. In the absence of established government or regulatory oversight, ASCO has developed [principles](#) for the safe and responsible use of AI in oncology. Clinician comfort with utilization of AI tools will depend on continued evidence of safety and effectiveness in the post-approval setting. Federal agencies like the Food and Drug Administration (FDA) have signaled they do not have the resources or scope of authority to design and implement AI oversight mechanisms.³ Currently the FDA has limited ability to monitor the technology once it’s on the market, which is further complicated by the potential for AI model drift. This highlights the urgent need for effective post-market surveillance and reporting mechanisms that can monitor AI performance throughout the lifecycle of AI tools.

Many efforts are underway to develop model evaluation and validation of safe and effective AI, including the deployment of assurance labs with the purpose of enabling transparent and localized testing of AI models.⁴ Federated data sharing offers a potential solution, demonstrating high quality comparable results to centralized data while addressing data siloing and privacy concerns.⁵⁻⁶ These approaches align with ASCO’s principles which emphasize data sharing and collaboration between AI developers and clinicians.

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³ Warraich HJ, Tazbaz T, Califf RM. FDA Perspective on the Regulation of Artificial Intelligence in Health Care and Biomedicine. *JAMA*. 2025;333(3):241-247. doi:10.1001/jama.2024.21451

⁴ Shah NH, Halamka JD, Saria S, et al. A Nationwide Network of Health AI Assurance Laboratories. *JAMA*. 2024;331(3):245–249. doi:10.1001/jama.2023.26930

⁵ <https://paragoninstitute.org/private-health/the-regulation-of-uncertainty/>

⁶ Karagyris, A., Umeton, R., Sheller, M.J. et al. Federated benchmarking of medical artificial intelligence with MedPerf. *Nat Mach Intell* 5, 799–810 (2023). <https://doi.org/10.1038/s42256-023-00652-2>.

ASCO is pleased to provide input and offers itself as a resource to the Administration as you continue to examine how to develop and implement an AI action plan. ASCO believes that through flexible regulatory approaches, investments in initiatives that drive innovation, enabling interoperability, strengthening cybersecurity and data privacy, and promoting trust we can harness the promise of AI and make significant strides in maintaining our position as leaders of innovation. By collectively embracing the proposed recommendations, ASCO hopes to enable a future where AI serves as a driver of innovation and clinician empowerment, enhancing the practice of medicine through the discovery, development, and delivery of promising new AI innovations to patients.

If you have questions or would like assistance on any issue involving the care of individuals with cancer, please contact Allyn Moushey at [REDACTED]

Sincerely,

Eric P. Winer, MD, FASCO
Chair of the Board
Association for Clinical Oncology

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